

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	B – Eligibility Factors
	Section No./Name	B-1400-FITAP-SNAP-STEP SNAP Work Requirements
	Document No./Name	B-1460-SNAP Work Registration Penalties
	Effective Date	February 1, 2021

I. STATEMENT OF POLICY

Mandatory Work Registrants (MWR's) are ineligible if they fail to meet work registration requirements set forth in [B-1410-SNAP](#). This includes ABAWDs and non-ABAWDs.

Length of disqualification:

- First violation - the individual will be ineligible for 1 *** month or until he complies, whichever is later.
- Second *** violation - the individual will be ineligible for 3 *** months or until he complies, whichever is later.
- * Third and subsequent violation – the individual will be ineligible for 6 months or until he complies, whichever is longer. **

Exception: Failure to register for work with LWC by creating a HiRE account at application will result in the *** exclusion of a household member instead of a disqualification. * If the MWR is the only household member, the application will be denied since there is no eligible person in the household.

At application, exclude the household member, who is a MWR, that failed to register for work with LWC by creating a HiRE account. At redetermination, disqualify the household member who is a MWR, that failed to register for work with LWC by creating a HiRE account.

Note: If the MWR becomes exempt anytime after non-compliance, the disqualification ends.

If the individual who does not comply is the head of the household, only the head of household is ineligible for the duration of the individual's disqualification. The other members of the household remain eligible. **

If the disqualified individual joins another household, * the disqualified individual remains ineligible for the remainder of the individual's disqualification period. **

B-1461-SNAP - PO ACTION ON NON-COMPLIANCE WITH SNAP WORK REGISTRATION REQUIREMENTS

* When the worker determines that non-compliance with work registration requirements was without good cause, review the record to determine whether the household member continues to be a MWR and whether a disqualification is appropriate.

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- If the household member is a MWR and good cause does not exist, enter the appropriate sanction within ten days from the date that it was determined that good cause does not exist. LITE will automatically send a Notice of Decision to the household advising of the disqualification.
- If the household member is a MWR, but met an exemption from work registration requirements after the act of non-compliance, the member should not be disqualified.
- If the household member is no longer a MWR, LITE will update the work registration code to the appropriate code.
- If an application or redetermination is not processed timely and the MWR registers for work with LWC prior to processing the application or redetermination, the member must not be excluded/disqualified.
- If the redetermination is not extended due to a procedural reason and the worker determines non-compliance and good cause does not exist, close the case the last workday of the redetermination month. Send a Concurrent Notice of Adverse Action to impose a sanction on all MWRs who failed to comply effective the month following the redetermination month.
- If a case closed (advance notice period has expired) due to a procedural reason, and good cause does not exist, another Notice of Adverse Action must be sent to impose the disqualification, however, this notice is a concurrent notice.
 - If the non-compliance is failure to register for work and the household failed to timely reapply, no action is taken since the household is not requesting benefits.
- If a case is within the 13-day Advance Notice of Adverse Action period, anytime other than at redetermination due to a procedural reason, such as failure to provide verification, failure to be interviewed, failure to timely reapply, or failure to provide a complete Simplified Report, etc., and good cause does not exist, another Advance Notice of Adverse Action must be issued to impose the appropriate sanction. The disqualification period begins the month following the expiration of the new Advance Notice of Adverse Action.
- A sanction is not appropriate if the case closed or is within the 13-day advance notice period due to the household's SNAP ineligibility. This includes but is not limited to reasons such as gross income over the limit, resources over the limit, IPV, work registration with LWC at application, disqualified due to receipt of lottery or gambling winnings equal to or greater than the elderly or disabled resource limit, etc. **

B-1462-SNAP - PO APPLYING THE DISQUALIFICATION

At application, the disqualification begins with the date of the voluntary quit, reduction in work effort or refusal of an offer of employment.

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Prior to certification, if the agency learns that a member of the applicant's household voluntarily quit, reduced their work effort, or refused an offer of employment after the application date, and good cause did not exist, then the individual who quit is not eligible for inclusion in the household * and must be disqualified. **

Impose a disqualification the earliest possible month for ongoing cases and cases closed due to procedural reasons. ***

EXCEPTION:

If non-compliance was not reported, not discovered timely, or the worker did not take timely action, determine when the disqualification would have been effective had it been imposed timely and good cause does not exist:

- If the disqualification period would still be in effect, impose the disqualification the first month following expiration of the Advance Notice of Adverse Action and complete a claim for the months of disqualification that were not imposed timely, or
- If the disqualification period would be over, complete a claim for the months of disqualification that were not imposed.

B-1463-SNAP - PO ENDING DISQUALIFICATION

The disqualification ends when:

- The mandatory one-* month, three-month, ** or six-month disqualification expires and the non-compliant member complies (See section B-1453-SNAP of [B-1450-SNAP](#)).
- or
- The recipient becomes exempt at any point after non-compliance from work registration requirements according to [B-1420-SNAP](#).

An individual can be added to the on-going certification effective the month after the disqualification ends. Follow procedures in [B-1463-2 SNAP-PR](#).

II. PROCEDURES

B-1461-SNAP - PR ACTION ON NON-COMPLIANCE WITH SNAP WORK REGISTRATION REQUIREMENTS

* If a MWR must be disqualified, follow procedures in B-1462-SNAP-PR. ** ***

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B-1462-SNAP - PR Applying The Disqualification

B-1462-1-SNAP ** PR - At Application or Ongoing Cases

At application or an ongoing case, apply the disqualification by entering the appropriate disqualification using the steps below:

- Navigate to the Non-Compliance/Sanction- Questions screen. If the member has any Non-Compliance/Sanction History in LITE, this question is pre-populated to “Yes”. After clicking the ‘Next’ button on the screen, the user is navigated to the ‘**Non-Compliance/Sanction Summary Screen**’ and the steps are correctly stated in the policy. If the member does not have Sanction History in LITE, the user must answer “Yes” to the question. After clicking ‘Next’, the user is navigated directly to the ‘**Non-Compliance-Details**’ screen.
- On the ‘Non-Compliance – Details’ screen, Enter the ‘Start/Change’ Date, ‘Reported On’ Date, ‘Non-Compliance Violation Type’ - SNAP E&T, and Non-Compliance Reason - Failed to Register for Work – HiRE, and the Decision Date. Since the Violation Type is ‘SNAP E&T’, a Good Cause Status/Reason must be entered.
- Enter the ‘Good Cause Status/Reason’ as ‘No Good Cause’ and click the NEXT button.
- The ‘Non-Compliance/Sanction Summary’ screen will display the new sanction in the ‘Non-Compliance Summary’ section of the screen. The sanction will not display in the Sanction Summary section of the Non-Compliance Summary screen until Eligibility Determination is completed on the case action. After Eligibility Determination is run, LITE will automatically populate the Occurrence, Sanction Begin Date, and Program fields on the ‘Non-Compliance/Sanction-Summary’ screen. The sanction will be effective the month following the Expiration Date on the Notice of Decision.

LITE will automatically send a Notice of Decision to impose the sanction. If multiple household members failed to register for work, only one notice is sent.

If the client takes the required action before the Advance Notice of Adverse Action expires, disposition the change, and select ‘Y’ (Yes) to override the closure. **

Prior to certification, if a member of the applicant’s household voluntarily quit, reduced their work effort, or refused an offer of employment after the application date, and good cause did not exist, the individual who quit is not eligible for inclusion in the household. * Follow the steps above to apply the disqualification. **

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B-1462-2-SNAP * - PR On Closed cases ** ***

For * cases closed due to procedural reasons and good cause does not exist, apply the disqualification by entering the appropriate disqualification using the steps below:

- Navigate to the 'Additional Processes' Module using the top navigation bar.
- Select 'Person Search- Non-Compliance'.
- Enter the "SSN" of the member who failed to register for work and click the SEARCH button. The member should display in the 'Person Results' table.
- Click the ADD NON-COMPLIANCE button. On the 'Non-Compliance Details' screen, the member's information is pre-populated in the 'Person Information'.
- Select the 'Non-Compliance Violation Type' - SNAP E&T' and 'Non-Compliance Reason - Failed to Register for Work – HiRE', and Enter the 'Decision Date' for the sanction. Since the Violation Type is 'SNAP E&T', the 'Good Cause Information' section of the screen must be completed.
- Enter the 'Good Cause Status/Reason' as 'No Good Cause' and click the ADD NON-COMPLIANCE button to receive a 'Submit Successful' message.

NOTE: The sanction will display in the 'Non-Compliance Summary' section of the Non-Compliance/Sanction-Summary screen when the member is either included on a New SNAP Application or added as a new household member in a SNAP Change Report. The sanction will not become effective until Eligibility Determination is completed on the case action. LITE will automatically populate the Occurrence, Sanction Begin Date, and Program fields on the Non-Compliance/Sanction-Summary screen.

LITE will automatically send a Notice of Decision to impose the sanction.

Document all actions in LITE. **

B-1463-SNAP - PR ENDING DISQUALIFICATION

If the MWR complies with the work registration requirements that caused the proposed sanction by the Notice Expiration Date on the * Notice of Decision , the sanction must be removed and eligibility run on the ** case ***. If the compliance was not reported or discovered prior to the sanction becoming effective, the sanction must be removed and the case reopened, if the case was closed. The original certification period must be reinstated. Ensure benefits are issued for any time that the case has been closed.

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The disqualification ends if the MWR becomes exempt after non-compliance. If a * Notice of Decision was sent and included Advance Notice of Adverse Action (NOAA) advising ** of a proposed disqualification and the household reports before the *** NOAA period expires that the MWR is exempt, advise the household that verification of the exemption must be received before the Notice Expiration Date on the * Notice of Decision ** or the disqualification will be applied. A written request for verification is not required because action to disqualify has already been proposed.

If the household verifies that the MWR became exempt after the advance notice expires, the sanction must be removed or ended based on the following criteria:

- If the *** verification is received after the advance notice expires, but prior to the effective month of the sanction, the sanction would be removed from * LITE. **
- If the *** verification is received after the advance notice expires and the sanction has already become effective, the sanction will be ended effective the following month.

Example: Advance notice expired on February 24 and sanction is effective March. Verification is received on February 26 indicating that the MWR is exempt from work registration requirements. Remove the sanction and * run eligibility on ** *** the case. The member should be added to the case effective March.

Example: Advance notice expired on February 24 and sanction is effective March. Verification is received on February 28 (after cutoff) indicating that the MWR is exempt from work registration. Remove the sanction and disposition the case. A supplement must be issued for March since the verification was received after cutoff.

Example: Advance notice expired on February 24 and sanction is effective March. Verification is received on March 3 indicating that the MWR is exempt from work registration. End the sanction effective April and * run eligibility ** on the case. The member will be added back to case effective April, which is the month following the month verification is received. No supplement is due for March.

Document all case actions * in LITE. ** ***

B-1463-1-SNAP - PR * Case Closed**

The local office is not responsible for tracking the cases which have been closed because of non-compliance. ***

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If the client reapplies, determine if they became exempt any time during the closure. If they were exempt any time after non-compliance, the disqualification no longer applies. If the client was not exempt any time after non-compliance and the client reapplies:

- Prior to the last month of the disqualification period, deny the application * if the MWR is the only household member. **

- During the last month of the disqualification period and provides verification that compliance occurred during the disqualification period, certify the case effective the following month if the client meets all eligibility requirements. Advise the client of the reason for ineligibility for the month of application.
- During or after the last month of the disqualification period and provides verification that compliance occurred subsequent to the disqualification period, certify the case effective the application date or date of compliance whichever is later provided all eligibility requirements are met. Benefits are prorated.
- And is eligible for expedited service, verification of the exemption or compliance may be postponed. However, registering for work with LWC may not be postponed unless the interview was conducted with the authorized representative.

B-1463-2-SNAP - PR * Case Still Open

If the worker determines or is notified that the individual complied during the disqualification period, the worker must set a Task to ensure the individual is added to the ongoing certification after the appropriate disqualification period has been served if the member is still a household member.

If the non-compliance was due to refusal of a job offer, voluntary quit, or voluntary reduction in work effort, the individual must be added back to the household after the appropriate disqualification period has been served if the individual agrees to seek and accept comparable employment as outlined in section B-1453-SNAP of [B-1450-SNAP](#).

If the non-compliance was due to failure to register for work with LWC at redetermination, the individual must be added back to the household after the appropriate disqualification ** period has been served and the individual registers for work with LWC by creating a HiRE account.

III. FORMS AND INSTRUCTIONS

*** There are no forms associated with this policy.

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IV. REFERENCES

[7CR 273.7](#)

[LAC-Title 67](#):Part III., Subpart 3. Supplemental Nutrition Assistance Program (SNAP), Chapter 19. Certification of Eligible Households, Subchapter G. Work Requirements